

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE Buyer, LLC, Complainant v. COSCO Shipping Lines Co., LTD, Respondent

**COMPLAINANT'S MOTION FOR LEAVE TO FILE A SURREPLY IN OPPOSITION
TO RESPONDENT'S MOTION FOR PARTIAL SUMMARY JUDGMENT**

Complainant TZ SSE Buyer, LLC ("Complainant"), by its undersigned counsel and pursuant to 46 C.F.R. § 502.70(d), respectfully moves for leave to file a surreply in opposition to Respondent's Motion for Partial Summary Judgment. A copy of the proposed surreply is attached as **Exhibit 1**.

Complainant submits that extraordinary circumstances justify the filing of a surreply because Respondent's reply brief raises, for the first time, an argument suggesting that Complainant's counsel violated ABA Model Rule 3.3(a)(2) by not citing an Initial Decision in *TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.*, FMC Docket No. 24-10. That Initial Decision was served just two days prior to the filing of Complainant's opposition, remains non-final, and is subject to Complainant's filing of exceptions and possible Commission review. Nonetheless, Respondent asserts that the omission of this non-binding and procedurally unresolved decision constitutes an ethical lapse.

Because this allegation directly challenges Complainant's counsel's professional integrity, Complainant respectfully submits that it constitutes an extraordinary circumstance warranting a short, focused surreply to address and correct the record. Complainant's proposed surreply is narrowly tailored to the issue raised and does not otherwise repeat arguments previously made.

For these reasons, Complainant respectfully requests that the Presiding Officer grant leave to file the surreply attached as **Exhibit 1**.

Dated: April 2, 2025

Respectfully submitted,

CLARK HILL PLC

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CERTIFICATE OF SERVICE

I certify that on April 2, 2025, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502.

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